

National Highways Infrastructure Authority
National Highways Infrastructure Authority
NHIA Project Office, Plot 14, Sector 9, Government Complex, Vantara City

Employer's Response — Commercial Notice CTR-NRB4-0091

Nandira River Bridge Project — Package NRB-4

Document Reference:	NHIA-NRB4-COMM-003
Date:	18-Feb-2022
Contract No.:	NHIA/NRB4/CW/2020-01
From:	National Highways Infrastructure Authority
To:	Meridian Engineering Consultants
CC:	Sagara Constructions Pvt. Ltd.

Subject: Commercial Notice CTR-NRB4-0091 — Retention on Variation VO-NRB4-004

We refer to the Contractor's Commercial Notice CTR-NRB4-0091 dated 10-Feb-2022, disputing the application of Retention to Variation VO-NRB4-004 within Interim Payment Certificate IPC-NRB4-011.

Our preliminary view is that Retention was correctly applied in accordance with Contract Data Section 6 and Sub-Clause 14.3, and that nothing in the Contract distinguishes Variations from other work for Retention purposes. However, given the Contractor has raised this as a matter of general application to future Variations, we consider it appropriate for the Engineer to provide a formal commercial assessment of the contractual position before we respond substantively.

We would be grateful for the Engineer's assessment in due course.

Separately, and unrelated to this matter, we confirm receipt of the Contractor's notice of renewal of the Contractor's All Risks insurance policy for the period from 15-Jan-2022, and have no comment on that renewal.

Regards,
National Highways Infrastructure Authority